

ELIZABETH II



1972 CHAPTER lii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Aberdeen Harbour.
[30th November 1972]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Aberdeen Harbour Order Short title. Confirmation Act 1972.

SCHEDULE

ABERDEEN HARBOUR

Provisional Order to authorise the Aberdeen Harbour Board to make and operate schemes for regulating the berthing of fishing vessels at the fish market and for other purposes connected therewith.

Whereas the Aberdeen Harbour Board (hereinafter referred to as "the Board") were constituted and incorporated by the Aberdeen Harbour Order 1960:

And whereas by the Aberdeen Corporation (Fish Market) Order 1969 the fish market formerly belonging to the Corporation of the City of Aberdeen was transferred to and vested in the Board:

And whereas from time to time difficulties have arisen with regard to the arrangements for berthing or mooring of fishing vessels at the fish market:

And whereas it is expedient that the Board should be authorised from time to time to make and operate schemes for regulating the berthing or mooring of fishing vessels and the priority and order of landing fish as in this Order provided:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary of State hereby orders as follows:—

Short title.

1.—(1) This Order may be cited as the Aberdeen Harbour Order 1972.

(2) The Aberdeen Harbour Orders 1960 and 1968 and the Aberdeen Harbour Revision Orders 1971 and 1972 and this Order may be cited together as the Aberdeen Harbour Orders 1960 to 1972.

Interpretation.

2. In this Order, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively:—

"the Board" means the Board acting for the time being under the Order of 1960;

"fish market" means the fish market as defined in section 2 (Interpretation) of the Aberdeen Corporation (Fish Market) Order 1969;

"harbour master" means the harbour master as defined in section 2 (Interpretation) of the Order of 1960;

"Order of 1960" means the Aberdeen Harbour Order 1960.

3. The Board may from time to time make and operate schemes and may vary and modify any such schemes for regulating the place, order and position of berthing or mooring of fishing vessels and the priority and order of landing of fish from such vessels at the fish market or at such other place as may be set aside by the Board for the landing of fish. Berthing and mooring of fishing vessels.

4. Without prejudice to the provisions of section 82 (Masters to comply with directions of harbour master) of the Order of 1960 the harbour master or any duly authorised officer of the Board may give directions for the purpose of securing compliance with any schemes made under this Order and any person who fails to comply with any such directions shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding £250 and on conviction on indictment to a fine. Enforcement.

5. A copy of any scheme as made, varied or modified under this Order and for the time being in force shall be available at all reasonable hours for inspection by any person without charge at the principal office of the Board and copies thereof shall be available for sale at such office at a reasonable price for each copy. Publication of scheme.

6. All costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in relation thereto shall be paid by the Board out of the revenues of the harbour undertaking. Costs of Order.

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FOR C. H. BAYLIS, C.B.

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